

Multi-Jurisdiction Compliance Response Matrix

Company ShopGhana	Jurisdictions Ghana Germany California	Requests 3 Deletion Requests	Reference Date Q2 2025
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Section 1 — Compliance Response Matrix (Summary)

The table below provides a side-by-side comparison of ShopGhana's obligations across all three customer deletion requests and their respective legal frameworks.

Criterion	Customer A — Abena (Ghana)	Customer B — Lukas (Germany)	Customer C — Maria (California)
Applicable Law	Ghana DPA 2012 (Act 843)	EU GDPR	CCPA / CPRA
Right to Deletion	Yes — Section 18 right to correction/erasure where processing is unlawful or consent withdrawn	Yes — Article 17 "Right to Erasure"	Yes — CCPA Section 1798.105 right to deletion
Key Exemption	Financial/tax records; legal obligation retention	Legal claims, compliance obligations, public interest	Active dispute (return claim) pauses deletion; legal hold possible
Response Deadline	21 days (Act 843, Section 38)	1 calendar month (Art. 12 GDPR)	45 business days + 45-day extension if notified
Can Delete Immediately?	Yes — no open orders or disputes	Yes — delivery completed, no disputes	No — active return dispute outstanding
Data to Retain	Transaction records (6 years, tax law); financial records	Billing/tax records (legal obligation); fraud prevention logs	Dispute records until resolution + applicable limitation period
Penalty for Non-Compliance	GHS 60,000 fine or 5 years imprisonment (Act 843, Sec. 72)	Up to EUR 20 million or 4% global turnover (Art. 83 GDPR)	USD 100–750 per consumer per incident; AG enforcement

Section 2 — Customer A: Abena (Accra, Ghana)

Applicable Law: Ghana Data Protection Act, 2012 (Act 843)

Profile: Account Age: 3 years | Last Purchase: 8 months ago | No open orders or disputes

2.1 — Legal Rights Analysis

Q1. Does Abena have a legal right to deletion under Ghana's DPA?

Yes. Under the Ghana Data Protection Act, 2012 (Act 843), a data subject has the right to request that a data controller cease processing their personal data and delete or destroy it. Specifically, Section 18 grants the right to object to processing, and Section 17 establishes the right to have inaccurate or unlawfully processed data corrected or erased. Since Abena has withdrawn her implicit consent to data processing by requesting deletion — and has no outstanding orders or disputes that would create a lawful continuing basis for processing — her request is valid and must be honoured.

Q2. What are ShopGhana's obligations?

- Acknowledge the request and confirm receipt in writing.
- Verify Abena's identity before processing the deletion.
- Permanently delete all personal data that has no independent legal retention basis.
- Notify any third-party processors (e.g., payment processors, logistics partners) to also delete Abena's data.
- Maintain a record of the deletion request and action taken, as required by the Act's accountability principle.
- Issue a written confirmation to Abena once deletion is completed.

Q3. What data, if any, can be retained and for how long?

Data Category	Retention Period	Legal Basis
Transaction records (invoices, receipts)	6 years	Ghana Revenue Authority Act — tax and financial record-keeping obligation
Records of the deletion request itself	3 years minimum	Accountability requirement under Act 843, Sec. 17 and 18
Fraud/dispute records (if any)	Until limitation period expires	Legal defence under Limitation Act, 1972 (NRCD 54)
Marketing data, browsing history, profile data	Must be deleted immediately	No lawful basis for continued processing after consent withdrawal

Q4. Response deadline?

Act 843, Section 38 requires a data controller to respond to a data subject request within 21 days of receipt. If the request cannot be completed within that period, ShopGhana must notify Abena of the reason for the delay and indicate when action will be completed.

2.2 — Action Steps with Timelines

Step	Action Required	Timeline
1	Send acknowledgement email confirming receipt of deletion request	Within 3 business days
2	Verify Abena's identity (email confirmation / account verification)	Within 5 business days
3	Audit all systems holding Abena's personal data (CRM, email, analytics, payment processor)	Days 5–10
4	Execute deletion across all internal systems except legally exempt records	Days 10–18
5	Notify third-party processors and confirm their deletion	Days 10–18
6	Isolate and flag retained records (financial/tax) with access restriction	Day 18
7	Send written deletion confirmation to Abena	By Day 21 (statutory deadline)
8	Log the completed deletion request in the compliance register	Day 21

2.3 — Draft Response to Abena

Subject: Confirmation of Your Data Deletion Request — ShopGhana

Dear Abena,

Thank you for contacting ShopGhana. We have received your request dated [DATE] to delete your personal data and close your account.

We have verified your identity and are processing your request in accordance with the Ghana Data Protection Act, 2012 (Act 843). The following actions have been or will be taken within 21 days of your request:

- Your ShopGhana account will be permanently deactivated and all associated personal data (name, address, email, browsing history, preferences) will be deleted from our active systems.
- We will instruct our delivery and payment processing partners to delete your personal information from their records.
- Please note that we are legally required to retain certain financial records (transaction invoices and payment records) for a period of 6 years under Ghanaian tax law. These records will be isolated and will not be used for any marketing or operational purpose.

You will receive a final confirmation email once the deletion is complete. If you have any questions, please contact our Data Protection Officer at dpo@shopghana.com.

ShopGhana Data Protection Team

Section 3 — Customer B: Lukas (Berlin, Germany)

Applicable Law: EU General Data Protection Regulation (GDPR)

Profile: Account Age: 1 year | Last Purchase: 2 weeks ago (delivered) | No open orders or disputes

3.1 — Legal Rights Analysis

Q1. Does Lukas have a legal right to erasure under GDPR?

Yes. GDPR Article 17(1) establishes the "right to erasure" (also known as the "right to be forgotten"). Lukas's request is valid on at least two grounds: (a) the personal data is no longer necessary for the purpose for which it was collected — his purchase has been delivered and there are no ongoing contractual obligations; and (b) he is withdrawing consent to data processing for marketing and profiling purposes. ShopGhana has no overriding legitimate interest that would justify continued retention of his full account profile.

Q2. Are there any exemptions that apply?

Yes — partially. Article 17(3) GDPR provides exemptions where retention is necessary for:

- Compliance with a legal obligation (e.g., EU financial record-keeping requirements, typically 10 years in Germany under HGB Section 257 and AO Section 147 for accounting records and invoices).
- The establishment, exercise, or defence of legal claims — however, since the purchase was delivered and no dispute was filed, this exemption does not currently apply to Lukas.
- Fraud prevention or security (e.g., pseudonymised logs may be retained briefly, but full account data must be deleted).

The exemptions apply only to specific data categories (billing/tax records), not to the entire account. Lukas's profile, marketing data, browsing history, and preferences must be deleted in full.

Q3. What specific steps must ShopGhana take?

- Verify Lukas's identity without requesting unnecessary additional data (GDPR Art. 12).
- Erase all personal data from active systems: account profile, email, address, purchase history (profile view), preferences, and marketing lists.
- Inform all third-party data processors (logistics, payment processor, analytics tools) to delete Lukas's data.
- If data has been shared with other controllers, inform them of the erasure request to the extent reasonably practicable (Art. 17(2)).
- Retain only legally mandated financial records (invoices) in a restricted, access-controlled archive.
- Send written confirmation of erasure to Lukas.

Q4. Response deadline?

Under GDPR Article 12(3), ShopGhana must respond without undue delay and in any event within one calendar month of receiving the request. This period may be extended by a further two months where necessary due to complexity or volume, but Lukas must be informed of the extension — and the reason for it — within the first month.

Q5. What happens if ShopGhana misses the deadline?

- Lukas may file a complaint with the relevant Supervisory Authority — in Germany, the Berliner Beauftragte für Datenschutz und Informationsfreiheit (BInBDI).
- The Supervisory Authority may investigate and impose administrative fines of up to EUR 20,000,000 or 4% of ShopGhana's total annual global turnover, whichever is higher (Art. 83(5) GDPR).
- Lukas also has the right to seek judicial remedy directly (Art. 79 GDPR) and to claim compensation for material or non-material damage (Art. 82 GDPR).

- Non-compliance may also trigger mandatory reporting obligations if it constitutes a data protection violation.

3.2 — Action Steps with Timelines

Step	Action Required	Timeline
1	Acknowledge receipt and confirm the erasure request in writing	Within 5 days
2	Identity verification (minimal data — do not request more than necessary)	Within 7 days
3	Map all systems holding Lukas's personal data across all processors	Days 7–14
4	Execute erasure: account, marketing, analytics, profile, preferences	Days 14–25
5	Notify all third-party processors and sub-processors; obtain deletion confirmations	Days 14–25
6	Archive invoices/billing records in restricted access (legal hold, no marketing use)	Days 25–28
7	Send written erasure confirmation to Lukas with details of what was deleted and what was retained (and why)	By Day 30 (statutory deadline)
8	Log the request and response in the GDPR compliance register (Art. 30)	Day 30

3.3 — Data Retention Schedule

Data Category	Retention Period	Legal Basis
Invoices and payment records	10 years	German Commercial Code (HGB s.257) and Fiscal Code (AO s.147) — mandatory accounting record retention
Fraud/security logs (pseudonymised)	Up to 6 months	GDPR Art. 17(3)(b) — legitimate interest in security; must be minimised
Legal claims evidence (if any)	Until limitation period expires	GDPR Art. 17(3)(e) — defence of legal claims (not currently applicable)
Account profile, email, address, preferences, browsing history	Must be deleted immediately	No remaining legal basis after erasure request; no exemption applies
Marketing and remarketing lists	Must be deleted immediately	Consent withdrawn; no legitimate interest overrides erasure right

3.4 — Draft Response to Lukas

Subject: Your GDPR Article 17 Erasure Request — Confirmation | ShopGhana

Dear Lukas,

We have received your request dated [DATE] to erase your personal data under Article 17 of the General Data Protection Regulation (GDPR). We take your rights seriously and are responding within the statutory one-month deadline.

Actions taken:

- Your ShopGhana account has been permanently deleted, including your name, email address, delivery addresses, purchase history, product preferences, and all marketing profile data.
- We have instructed our payment processor, logistics partners, and analytics providers to delete your personal data from their systems.

Data we are required to retain:

- We are legally required under German commercial and tax law (HGB Section 257 / AO Section 147) to retain invoices and payment records for a period of 10 years. These records are held in a restricted archive, are not accessible for commercial purposes, and will be deleted automatically at the end of the retention period.

You have the right to lodge a complaint with the Berliner Beauftragte für Datenschutz und Informationsfreiheit (BlnBDI) if you are dissatisfied with our response. If you have any questions, please contact our EU Data Protection Officer at dpo-eu@shopghana.com.

ShopGhana EU Data Protection Officer

Section 4 — Customer C: Maria (Los Angeles, California)

Applicable Law: California Consumer Privacy Act (CCPA) / California Privacy Rights Act (CPRA)

Profile: Account Age: 2 years | Last Purchase: 6 months ago | Active return dispute filed 20 days ago

4.1 — Legal Rights Analysis

Q1. What rights does Maria have under CCPA/CPRA?

Under the CCPA (Cal. Civ. Code 1798.100 et seq.) as amended by the CPRA, Maria has the following rights:

- **Right to Know:** The right to know what personal information ShopGhana collects, uses, discloses, and sells (Sec. 1798.110, 1798.115).
- **Right to Delete:** The right to request deletion of personal information ShopGhana has collected (Sec. 1798.105).
- **Right to Opt-Out of Sale/Sharing:** The right to direct ShopGhana to stop selling or sharing her personal information with third parties (Sec. 1798.120) — this right is effective immediately upon request.
- **Right to Correct:** The right to request correction of inaccurate personal information (CPRA addition, Sec. 1798.106).
- **Right to Limit Use of Sensitive Personal Information:** If ShopGhana collects sensitive data (e.g., payment card data, precise geolocation), Maria can restrict its use (CPRA, Sec. 1798.121).
- **Right to Non-Discrimination:** ShopGhana cannot penalise Maria for exercising any of these rights (Sec. 1798.125).

Q2. Can ShopGhana process the deletion request immediately? Why or why not?

No — not in full. The active return dispute filed 20 days ago creates a lawful basis to retain the specific personal data necessary to process and resolve that dispute. Under CCPA Section 1798.105(d), deletion requests may be denied where the information is necessary to:

- Complete a transaction for which the personal information was collected (the return/refund request constitutes an unresolved transaction).
- Detect security incidents or protect against fraudulent or illegal activity.
- Exercise or defend legal claims.

ShopGhana must inform Maria that the deletion request is partially deferred due to the outstanding dispute, specify which data is being held and why, commit to deleting that data once the dispute is resolved, and proceed immediately with deleting all data that is not necessary for the dispute resolution (e.g., marketing preferences, browsing history, product recommendations).

Q3. How should ShopGhana respond to the "stop selling" request?

The "Right to Opt-Out of Sale or Sharing" under CCPA/CPRA Section 1798.120 is separate from the deletion right and must be honoured immediately — it is not subject to the dispute exception.

- ShopGhana must immediately cease selling or sharing Maria's personal information with any third parties for cross-context behavioural advertising or commercial purposes.
- This includes removing Maria from any data broker lists, ad-targeting platforms, or affiliate data-sharing agreements.
- ShopGhana must also instruct third parties who received Maria's data in the 90 days preceding the request to also cease using it (where technically feasible).
- A "Do Not Sell or Share My Personal Information" opt-out must be honoured globally across all ShopGhana systems within a reasonable time (no later than 15 business days per CPRA regulations).

Q4. Response deadline?

Under CCPA Section 1798.105(b), ShopGhana must respond to Maria's deletion request within 45 business days of receipt. This period may be extended by an additional 45 business days where reasonably necessary, provided Maria is informed of the extension within the initial 45-day window. The opt-out of sale/sharing must be acted upon within 15 business days of receipt.

Q5. What must be disclosed to Maria?

- A confirmation that her opt-out of sale/sharing has been processed and is effective immediately.
- A clear explanation of why the deletion request cannot be fully processed at this time (the active dispute) and which specific data is being retained.
- The categories of personal information being retained and the legal exception that applies.
- A commitment to complete the deletion once the return dispute is resolved.
- Information about her right to submit a complaint to the California Privacy Protection Agency (CPPA) if she believes her rights have been violated.
- The contact details of ShopGhana's designated privacy contact or Data Protection Officer.

4.2 — Action Steps with Timelines

Step	Action Required	Timeline
1	Acknowledge receipt of both the deletion request and the opt-out of sale request	Within 10 business days
2	Process opt-out of sale/sharing immediately across all data-sharing systems and third parties	Within 15 business days (statutory)
3	Verify Maria's identity using a reasonable verification process (no excessive data collection)	Within 15 business days
4	Identify and segregate data directly related to the active return dispute; apply legal hold	Days 10–20
5	Delete all personal data NOT required for the dispute: marketing, preferences, browsing history, profile data	Days 20–35
6	Notify third-party processors of partial deletion and opt-out of sale	Days 20–35
7	Send written response to Maria explaining: partial deletion, reason for deferral, data categories retained, and right to complain to CPPA	By Day 45 (statutory deadline)
8	Upon resolution of return dispute: complete full deletion of remaining personal data	Within 15 business days of dispute closure
9	Log entire request lifecycle in the CCPA compliance register	Ongoing

4.3 — Data Retention Schedule

Data Category	Retention Period	Legal Basis
Return/refund dispute records	Until dispute resolved + applicable limitation period (typically 4 years, Cal. Civ. Code 337)	CCPA s.1798.105(d)(2) — necessary to complete transaction; legal claims defence
Transaction/billing records	7 years	California tax/accounting requirements; IRS federal tax retention rules
Records of CCPA rights requests	24 months	CPRA regulatory requirement — businesses must maintain records of consumer requests and responses
Account profile, email, browsing, preferences	Must be deleted (partial — non-dispute data)	No lawful basis; no applicable CCPA exception for non-dispute data
Marketing lists and ad-targeting profiles	Must be deleted immediately	Opt-out of sale/sharing is effective; no exception applies

4.4 — Draft Response to Maria

Subject: Your Privacy Rights Request — ShopGhana Response | CCPA/CPRA

Dear Maria,

Thank you for submitting your privacy rights request dated [DATE]. We are responding in accordance with the California Consumer Privacy Act (CCPA) and the California Privacy Rights Act (CPRA). We have processed your request as follows:

1. Opt-Out of Sale/Sharing of Personal Information

Your request to stop the sale or sharing of your personal information has been processed. Effective immediately, ShopGhana will not sell or share your personal information with any third parties for commercial or advertising purposes. We have also instructed our data-sharing partners to cease processing your data where we have the technical capability to do so.

2. Deletion Request — Partial Processing

We have begun processing your deletion request. However, we are unable to immediately delete all of your personal information. Our records indicate that you have an active return dispute (filed [DATE]) that remains unresolved. Pursuant to CCPA Section 1798.105(d), we are required to retain the following specific data until the dispute is closed:

- Your name, contact information, shipping address, and the details of the transaction and return request — solely for the purpose of resolving your return claim.

All other personal data that is not necessary for this purpose — including your marketing profile, browsing history, product recommendations, and stored preferences — has been permanently deleted.

Once your return dispute is resolved, we will complete the full deletion of your remaining personal data and send you a final confirmation within 15 business days.

3. Your Right to Complain

If you believe we have not adequately responded to your request, you have the right to submit a complaint to the California Privacy Protection Agency (CPPA) at cpa.ca.gov.

For any questions, please contact our Privacy Team at privacy@shopghana.com or call our toll-free privacy line at [NUMBER].

ShopGhana Privacy & Compliance Team

Section 5 — Comparative Analysis & Key Takeaways

5.1 — Jurisdiction Comparison

Feature	Ghana DPA (Act 843)	GDPR	CCPA / CPRA
Right to deletion explicit?	Implied (Sec. 17–18)	Explicit (Art. 17)	Explicit (Sec. 1798.105)
Response deadline	21 days	1 calendar month	45 business days
Financial record exemption	Yes — tax law	Yes — Art. 17(3)(b)	Yes — Sec. 1798.105(d)
Opt-out of data sale	Not specifically addressed	Addressed via consent/legitimate interest	Explicit right (Sec. 1798.120)
Max penalty for breach	GHS 60,000 / 5 yrs prison	EUR 20M or 4% global turnover	USD 100–750 per consumer per incident
Supervisory authority	Data Protection Commission (DPC)	National DPA (BlnBDI for Berlin)	California Privacy Protection Agency (CPPA)
Dispute pauses deletion?	Not explicitly stated; implied	Yes — Art. 17(3)(e)	Yes — Sec. 1798.105(d)(2)

5.2 — Operational Recommendations for ShopGhana

- Appoint a dedicated Data Protection Officer (DPO) with cross-jurisdiction expertise to oversee compliance across Ghana, EU, and US markets.
- Implement a unified Data Subject Request (DSR) management platform that can track, route, and document requests across all three regulatory frameworks with built-in deadline calendars.
- Establish a clear data inventory and data flow map so that all systems holding customer personal data can be identified and actioned quickly upon receipt of a deletion request.
- Create jurisdiction-specific data retention policies that are embedded in database architecture — so that legally exempt records are automatically isolated from operational data upon account deletion.
- Train all customer-facing and technical staff on the three regulatory frameworks to ensure consistent handling and to avoid accidental non-compliance.
- Publish a clear Privacy Policy covering all three jurisdictions, including a "Do Not Sell or Share My Personal Information" link visible on the ShopGhana homepage (CCPA requirement).
- Conduct quarterly compliance audits to verify that deletion requests are being processed within statutory deadlines and that retained records are appropriately restricted.